

CV-24-008809 TIMMINS, LACEY vs CLEARCAPITALCOM INC – Plaintiff's Motion for Leave to Amend Complaint – GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: Plaintiff has sufficiently demonstrated grounds for the proposed amendment. The Court has broad discretion in this area and there is a strong policy in favor of liberal allowance of amendments. (Code Civ. Proc. §§ 473(a)(1), 576.) Therefore, Plaintiff shall submit the Second Amended Complaint for filing within 10 days. Further, the Court recognizes that this ruling renders the pending motions for summary judgment moot, as they are based on the superseded First Amended Complaint. (See, e.g. State Compensation Insurance Fund v. Superior Court (2010) 184 Cal.App.4th 1127, 1130, and authorities there referenced.) It is error to rule on a summary judgment motion under such circumstances. (Id., at 1131.) While Defendants advocate for the imposition of certain conditions on the Court's granting of the instant motion, i.e., allowing the pending motions for summary judgment to be renewed for hearing as presently noticed, the Court concludes that such conditions are not warranted herein. Defendants may renew their summary judgment motions to address the issues raised by the Second Amended Complaint but should do so as prescribed by the Code of Civil Procedure. Therefore, the summary judgment hearing dates are VACATED, subject to renewal by Defendants after the Second Amended Complaint is placed at issue. Plaintiff shall submit a revised form of order consistent with the Court's ruling herein.

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